

IN THE SENATE

SENATE BILL NO. 1415

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO ELECTRICAL, PLUMBING, AND HVAC INSPECTIONS; PROVIDING LEGISLATIVE INTENT; AMENDING CHAPTER 26, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-2616, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING STATE-CERTIFIED PRIVATE INSPECTORS; AMENDING SECTION 54-1001B, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS ON AND AFTER A CERTAIN DATE; REPEALING SECTION 54-1001C, IDAHO CODE, RELATING TO INSPECTIONS WITHIN MUNICIPALITIES WHEN AUTHORIZED; REPEALING SECTION 54-1001D, IDAHO CODE, RELATING TO INSPECTIONS OF MODULAR BUILDINGS; AMENDING CHAPTER 10, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-1001E, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS; AMENDING SECTION 54-1003, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS; AMENDING SECTION 54-1003A, IDAHO CODE, TO DEFINE A TERM; REPEALING SECTION 54-1004, IDAHO CODE, RELATING TO INSPECTION OF ELECTRICAL INSTALLATIONS, NOTICE OF CORRECTIONS, AND DISCONNECTING ELECTRICAL SERVICE; REPEALING SECTION 54-1005, IDAHO CODE, RELATING TO RULES, INSPECTIONS, AND ELECTRICAL PERMITS AND FEES; AMENDING CHAPTER 10, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-1005, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING RULES AND ELECTRICAL PERMITS AND FEES; AMENDING SECTION 54-1006, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE IDAHO ELECTRICAL BOARD; AMENDING SECTION 54-1007, IDAHO CODE, TO PROVIDE FOR THE QUALIFICATIONS OF STATE-CERTIFIED PRIVATE INSPECTORS; AMENDING SECTION 54-1008, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS; AMENDING SECTION 54-1009, IDAHO CODE, TO PROVIDE FOR THE DISCIPLINE OF CERTIFICATIONS; AMENDING SECTION 54-1017, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS; REPEALING SECTION 54-1019, IDAHO CODE, RELATING TO QUALIFICATIONS OF INSPECTORS; AMENDING CHAPTER 10, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-1019, IDAHO CODE, TO PROVIDE FOR QUALIFICATIONS OF INSPECTORS; REPEALING SECTION 54-2601, IDAHO CODE, RELATING TO THE DECLARATION OF POLICY AND PURPOSE OF THE IDAHO STATE PLUMBING CODE; AMENDING CHAPTER 26, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-2601, IDAHO CODE, TO ESTABLISH A DECLARATION OF POLICY AND PURPOSE OF THE IDAHO STATE PLUMBING CODE; AMENDING SECTION 54-2606, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS AND TO PROVIDE A SUNSET DATE; AMENDING SECTION 54-2607, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE POWERS AND DUTIES OF THE ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFESSIONAL LICENSES; AMENDING SECTION 54-2608, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS; REPEALING SECTION 54-2620, IDAHO CODE, RELATING TO PERMITS REQUIRED AND EXCEPTIONS; REPEALING SECTION 54-2622, IDAHO CODE, RELATING TO PERMITS, APPLICATIONS, AND REQUIREMENTS; REPEALING SECTION 54-2623, IDAHO CODE, RELATING TO FEES, PERMITS, AND INSPECTIONS; AMENDING SECTION 54-2624, IDAHO CODE, TO REVISE PROVISIONS REGARDING INSPECTIONS; REPEALING SECTION 54-2626,

IDAHO CODE, RELATING TO NOTIFICATIONS AND FEES FOR REINSPECTION; AMENDING SECTION 54-2627, IDAHO CODE, TO REVISE PROVISIONS REGARDING THE QUALIFICATIONS OF INSPECTORS; REPEALING SECTION 54-5005, IDAHO CODE, RELATING TO THE POWERS AND DUTIES OF THE HEATING, VENTILATION AND AIR CONDITIONING BOARD; AMENDING CHAPTER 50, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-5005, IDAHO CODE, TO ESTABLISH POWERS AND DUTIES OF THE HEATING, VENTILATION AND AIR CONDITIONING BOARD; REPEALING SECTION 54-5006, IDAHO CODE, RELATING TO THE ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFESSIONAL LICENSES; AMENDING CHAPTER 50, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-5006, IDAHO CODE, TO PROVIDE FOR THE ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFESSIONAL LICENSES; REPEALING SECTION 54-5016, IDAHO CODE, RELATING TO PERMITS, EXCEPTIONS, AND LOCAL GOVERNMENT FEES; AMENDING CHAPTER 50, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-5016, IDAHO CODE, TO PROVIDE FOR PERMITS AND LOCAL GOVERNMENT FEES; REPEALING SECTION 54-5017, IDAHO CODE, RELATING TO PERMITS, APPLICATIONS, AND FEES; AMENDING SECTION 54-5018, IDAHO CODE, TO PROVIDE FOR STATE-CERTIFIED PRIVATE INSPECTORS; REPEALING SECTION 54-5020, IDAHO CODE, RELATING TO REQUESTS FOR INSPECTION AND FEES FOR REINSPECTION; AMENDING CHAPTER 50, TITLE 54, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 54-5020, IDAHO CODE, TO PROVIDE FOR LOCAL GOVERNMENT INSPECTIONS; REPEALING SECTION 54-5021, IDAHO CODE, RELATING TO THE APPOINTMENT AND QUALIFICATION OF INSPECTORS; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE INTENT. It is the intent of the Legislature that on and after July 1, 2030, electrical, plumbing, and HVAC inspections no longer be performed by the Division of Occupational and Professional Licenses. Instead, the Legislature finds that it would be advantageous and more efficient for such inspections, if not being otherwise provided for by local jurisdictions, to be performed by private inspectors who are certified by the Division of Occupational and Professional Licenses.

This legislation provides for a transition period between October 1, 2026, and July 1, 2030. During the transition period, electrical, plumbing, and HVAC inspections may be performed either by state inspectors or by state-certified private inspectors.

It is further the intent of the Legislature that nothing in this act shall be construed to alter or repeal any building, electrical, plumbing, or HVAC code adopted by the state or any political subdivision. Any inspection conducted pursuant to this act shall comply with the applicable code in effect at the time of inspection.

SECTION 2. That Chapter 26, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-2616, Idaho Code, and to read as follows:

67-2616. STATE-CERTIFIED PRIVATE INSPECTORS. (1) On and after October 1, 2026, the division shall implement a program to provide for the certification of private electrical, plumbing, and heating, ventilation, and air con-

1 ditioning (HVAC) inspectors that allows for private inspectors to apply to
2 the division to become certified to conduct electrical, plumbing, and HVAC
3 inspections. A person desiring a certification to perform inspections as a
4 state-certified private inspector shall make an application for such certi-
5 fication to the division in the form to be prescribed by the division. An
6 original application for a private inspector certification or a reinstatement
7 shall be accompanied by a fee not to exceed one hundred twenty-five dol-
8 lars (\$125).

9 (2) Electrical inspectors who apply for certification as state-certified
10 private inspectors shall be certified if they are qualified pursuant
11 to section 54-1019, Idaho Code. Before applying for a certification to per-
12 form electrical inspections, the applicant shall provide the division with
13 a passing score on the applicable international code council electrical in-
14 spector exam or any other inspector exam determined by the electrical board
15 to be substantially equivalent.

16 (3) Plumbing inspectors who apply for certification as state-certified
17 private inspectors shall be certified by the division if they are qualified
18 pursuant to section 54-2627, Idaho Code. Before applying for a certifica-
19 tion to perform plumbing inspections, the applicant shall provide the divi-
20 sion with a passing score on the international association of plumbing and
21 mechanical officials plumbing inspector exam or any other inspector exam de-
22 termined by the plumbing board to be substantially equivalent.

23 (4) HVAC inspectors who apply for certification as state-certified
24 private inspectors shall be certified by the division if they are qualified
25 pursuant to section 54-5021(2) and (3), Idaho Code. Before applying for a
26 certification to perform HVAC inspections, the applicant shall provide the
27 division with a passing score on the international code council mechanical
28 inspector exam or any other inspector exam determined by the HVAC board to be
29 substantially equivalent.

30 (5) Certifications issued by the division pursuant to this section
31 shall be valid for three (3) years. The renewal fee for a certification is-
32 sued pursuant to this section shall not exceed one hundred dollars (\$100).

33 (6) The division shall maintain and make available to the public a reg-
34 istry of state-certified private inspectors and the types of inspections
35 that such inspectors are certified to perform.

36 (7) A local jurisdiction shall not be required to provide for state-
37 certified private inspectors. However, a local jurisdiction that provides
38 for state-certified private inspectors to perform inspections shall not re-
39 quire a state-certified private inspector to obtain any additional certifi-
40 cation or registration or require payment of any fees in order for any state-
41 certified private inspector to conduct inspections within the local juris-
42 diction. A local jurisdiction that authorizes the use of state-certified
43 private inspectors shall be held harmless from any and all liability relat-
44 ing to delays or lack of availability of state-certified private inspectors.

45 (8) A state-certified private inspector shall carry proof of state cer-
46 tification whenever such inspector is conducting an inspection. It shall be
47 unlawful for any person to act as a state-certified private inspector if such
48 person is not certified by the division of occupational and professional li-
49 censes. Notwithstanding any other provision of law, a state-certified pri-
50 vate inspector shall not be required to maintain any underlying trade li-

1 cense solely to perform the work of providing state-certified private in-
 2 spections.

3 (9) The division shall be authorized to take any appropriate action
 4 against a state certification, subject to the provisions of chapter 52, ti-
 5 tle 67, Idaho Code, in any of the following circumstances:

6 (a) An inspector employed fraud or deception, made a misrepresentation
 7 or misstatement, or employed any unlawful means in applying for or se-
 8 curing certification as an inspector;

9 (b) An inspector has been convicted of or has engaged in conduct consti-
 10 tuting a violation of public laws, ordinances, or rules of this state,
 11 or any subdivision thereof, relevant to inspections;

12 (c) An inspector has engaged in any other conduct whether of the same
 13 or a different character than described in this subsection that consti-
 14 tutes dishonest or dishonorable dealings;

15 (d) An inspector has been adjudged mentally incompetent by a court of
 16 competent jurisdiction; or

17 (e) An inspector interfered with an investigation or disciplinary pro-
 18 ceeding by a willful misrepresentation of facts or by the use of threats
 19 or harassment against any person to prevent such person from providing
 20 evidence in a disciplinary proceeding, investigation, or other legal
 21 action instituted in accordance with this chapter.

22 (10) A state-certified private inspector shall conduct an inspection
 23 pursuant to the applicable code in effect at the time of any such inspection.

24 (11) A state-certified private inspector shall not conduct an inspec-
 25 tion relating to electrical, plumbing, or HVAC work occurring on property
 26 that the inspector or a related person has a direct or indirect ownership in-
 27 terest in or for work that was performed by or under the supervision of:

28 (a) Such inspector;

29 (b) A related person; or

30 (c) A person employed or contracted by a business in which the inspec-
 31 tor or a related person has a direct or indirect economic interest. As
 32 used in this section, "related person" means an inspector's employee,
 33 employer, business, business partner, business associate, or any per-
 34 son related to the inspector by affinity within the first degree.

35 (12) Between October 1, 2026, and June 30, 2030, the division shall em-
 36 ploy state inspectors and shall provide for the certification of private in-
 37 spectors. On and after July 1, 2030, the division shall no longer conduct
 38 electrical, plumbing, or HVAC inspections or employ inspectors for such pur-
 39 poses.

40 (13) The division may promulgate rules, subject to legislative ap-
 41 proval, to effectuate the provisions of this section.

42 SECTION 3. That Section 54-1001B, Idaho Code, be, and the same is hereby
 43 amended to read as follows:

44 54-1001B. STATE INSPECTION PROVISIONS INAPPLICABLE WHEN INSTALLATION
 45 COVERED BY MUNICIPAL ORDINANCE. (1) The provisions of this chapter relat-
 46 ing to state inspection, ~~except as provided in section 54-1001C, Idaho Code,~~
 47 shall not apply:

48 (a) Within cities or counties that, by ordinance or building code, pre-
 49 scribe the manner in which wires or equipment to convey current and ap-

paratus to be operated by such current shall be installed, provided that the provisions of the Idaho electrical code are used as the standard in the preparation of such ordinances or building codes and provided that actual inspections are made; or

(b) Within cities or counties that receive inspections from another city or county that conducts inspections pursuant to paragraph (a) of this subsection, provided that the provisions of the Idaho electrical code shall be used as the standard for such inspections.

(2) A city or county that conducts electrical code enforcement inspections shall do so only in compliance with the provisions of this section.

(3) A city or county that has not previously instituted and implemented an electrical code enforcement program prior to the effective date of this act may elect to implement such a program by passing an ordinance evidencing the intent to do so. A city or county may contract with a public or private entity to administer its electrical code enforcement program pursuant to the provisions of this section.

(4) A city or county that chooses to conduct its own electrical code enforcement inspections or to receive such inspections from another city or county shall provide the division of occupational and professional licenses notice of such decision in writing at least thirty (30) days prior to implementation.

(5) A city or county that terminates a permitting and inspection program established pursuant to this section shall notify the division of occupational and professional licenses in writing of its intent to terminate such program. Upon termination of a city or county permitting and inspection program, the division of occupational and professional licenses shall provide electrical code enforcement services in the jurisdiction for a minimum of one (1) year.

(6) Notwithstanding any provision of law to the contrary, on and after July 1, 2030, inspections under the state electrical code shall be conducted by state-certified private inspectors if not otherwise provided for by a city or county pursuant to the provisions of this section.

SECTION 4. That Section [54-1001C](#), Idaho Code, be, and the same is hereby repealed.

SECTION 5. That Section [54-1001D](#), Idaho Code, be, and the same is hereby repealed.

SECTION 6. That Chapter 10, Title 54, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 54-1001E, Idaho Code, and to read as follows:

54-1001E. CERTIFIED PRIVATE INSPECTORS. (1) Notwithstanding any other provision of law to the contrary, as provided for in section 67-2616, Idaho Code, between October 1, 2026, and June 30, 2030, the division shall provide for both state inspections and state-certified private inspectors.

(2) On and after July 1, 2030, the division shall no longer conduct electrical inspections or employ inspectors for such purposes.

(3) On and after July 1, 2030, all inspections under the Idaho state electrical code shall be conducted by state-certified private inspectors as

provided for in this section unless such inspections are conducted by a city or county pursuant to a municipal ordinance in accordance with the provisions of section 54-1001B, Idaho Code.

(4) State-certified private inspectors shall be qualified pursuant to section 54-1019, Idaho Code.

SECTION 7. That Section 54-1003, Idaho Code, be, and the same is hereby amended to read as follows:

54-1003. ADMINISTRATOR AUTHORITY. (1) Only the administrator of the division of occupational and professional licenses of the state of Idaho is authorized and empowered to conduct examinations and to pass upon the qualifications of applicants and to grant and issue licenses, ~~or~~ registrations, or certifications to such applicants as are found to be qualified to engage in the trade, business, or calling of a residential electrician, journeyman electrician, electrical contractor, master electrician, provisional journeyman electrician, limited electrical installer, limited electrical contractor, limited electrical installer trainee, ~~or~~ apprentice electrician, or state-certified private inspector in the manner and upon the terms and conditions hereinafter provided.

(2) No licenses, ~~or~~ registrations, or certifications granted hereunder shall be transferable. Licenses and registrations shall be issued upon the condition that the holder thereof shall comply with all provisions of this chapter.

(3) The administrator of the division of occupational and professional licenses is authorized to impose civil penalties as provided in this chapter.

SECTION 8. That Section 54-1003A, Idaho Code, be, and the same is hereby amended to read as follows:

54-1003A. DEFINITIONS. (1) Electrical Contractor. Except as provided in section 54-1016, Idaho Code, any person, partnership, company, firm, association or corporation engaging in, conducting, or carrying on the business of installing wires or equipment to carry electric current or installing apparatus to be operated by such current, or entering into agreements to install such wires, equipment or apparatus, shall for the purpose of this chapter be known as an electrical contractor. An electrical contractor, prior to being issued a license, shall be required to provide proof of liability insurance in the amount of three hundred thousand dollars (\$300,000) and proof of worker's compensation insurance if applicable.

(2) Journeyman Electrician. Except as provided in section 54-1016, Idaho Code, and subsections (4), (5), (6), and (7) of this section, any person who personally performs or supervises the actual physical work of installing electrical wiring or equipment to convey electric current, or apparatus to be operated by such current, or engages in planning, lay out, or design of such wiring, equipment, or apparatus, or the supervision thereof, shall for the purpose of this chapter be known as a journeyman electrician.

(3) Residential Electrician. Any person who personally performs or supervises the actual physical work of installing electrical wiring or equipment to convey electric current, or apparatus to be operated by such current

1 in a residential setting, shall for the purposes of this chapter be known as
2 a residential electrician. A residential electrician may work in a non-res-
3 idential setting only as a registered apprentice electrician under the con-
4 stant on-the-job supervision of a journeyman electrician.

5 (4) Apprentice Electrician. Any person who, for the purpose of learn-
6 ing the trade of residential electrician or journeyman electrician, engages
7 in the installation of electrical wiring, equipment, or apparatus while un-
8 der the constant on-the-job supervision of a qualified residential electri-
9 cian, journeyman electrician, or master electrician shall for the purpose of
10 this chapter be known as an apprentice electrician.

11 (5) Maintenance Electrician. Any person who is regularly employed to
12 service, maintain or repair electrical apparatus, or to make minor repairs
13 or alterations to existing electrical wires or equipment located on his em-
14 ployer's premises shall for the purpose of this chapter be known as a mainte-
15 nance electrician.

16 (6) Master Electrician. A person who has the necessary qualifications,
17 training, experience and technical knowledge to plan, lay out or design the
18 installation of electrical wiring or equipment, or to supervise such plan-
19 ning, layout, or design, and who performs or supervises such planning, lay-
20 out or design, shall for the purpose of this chapter be known as a master
21 electrician.

22 (7) Limited Electrical Installer. A person having the necessary quali-
23 fications, training, experience and technical knowledge to install, alter,
24 repair and supervise the installation, alteration or repair of special
25 classes of electrical wiring, apparatus or equipment within categories
26 adopted by the board. Limited electrical installers shall perform work only
27 within the scope of the restricted category for which the person is licensed.

28 (8) Limited Electrical Contractor. Except as provided in section
29 54-1016, Idaho Code, any person, partnership, company, firm, association
30 or corporation engaging in, conducting or carrying on the business of in-
31 stallings, altering or repairing restricted categories of electrical wiring,
32 apparatus or equipment within categories adopted by the board, or entering
33 into agreements to perform such restricted work, shall for the purpose of
34 this chapter be known as a limited electrical contractor. Limited electri-
35 cal contractors shall perform work only within the scope of the restricted
36 category for which the contractor is licensed. A limited electrical con-
37 tractor, prior to being issued a license, shall be required to provide proof
38 of liability insurance in the amount of three hundred thousand dollars
39 (\$300,000) and proof of worker's compensation insurance if applicable.

40 (9) Limited Electrical Installer Trainee. Any person who engages in
41 the installation of restricted categories of electrical wiring, equipment
42 or apparatus under the constant on-the-job supervision of a qualified lim-
43 ited electrical installer shall for the purpose of this chapter be known as a
44 limited electrical installer trainee.

45 (10) Electrical Facility Employer Account or Facility Account. An em-
46 ployer licensed with the division of occupational and professional licenses
47 who employs individuals holding valid journeyman or master electrician li-
48 censes to perform alterations, extensions and new installations of electri-
49 cal systems or components thereof on premises owned by the employer. The em-

1 ployer may also employ maintenance electricians in accordance with section
2 54-1016, Idaho Code.

3 (11) Provisional Journeyman Electrician. Any person who has met the re-
4 quirements of section 54-1007(4), Idaho Code, and who wishes to perform the
5 actual physical work of installing electrical wiring or equipment to convey
6 electric current, or apparatus to be operated by such current, while under
7 the constant on-the-job supervision of a qualified residential electrician,
8 journeyman electrician, or master electrician may upon application, for the
9 purposes of this chapter, be known as a provisional journeyman electrician.

10 (12) Residential Setting. For the purposes of this chapter, residen-
11 tial setting means one (1) and two (2) family dwellings, townhouses, and
12 multi-family structures up to three (3) stories.

13 (13) State-certified private inspector. A person who has been certi-
14 fied by the division of occupational and professional licenses pursuant to
15 the provisions of this chapter and section 67-2616, Idaho Code, to conduct
16 electrical inspections.

17 SECTION 9. That Section [54-1004](#), Idaho Code, be, and the same is hereby
18 repealed.

19 SECTION 10. That Section [54-1005](#), Idaho Code, be, and the same is hereby
20 repealed.

21 SECTION 11. That Chapter 10, Title 54, Idaho Code, be, and the same is
22 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
23 ignated as Section 54-1005, Idaho Code, and to read as follows:

24 54-1005. RULES -- ELECTRICAL PERMITS AND FEES. (1) The administrator
25 of the division of occupational and professional licenses is hereby autho-
26 rized and directed to promulgate rules, subject to legislative approval,
27 consistent with this chapter for the administration of this chapter and
28 to effectuate the purposes thereof, and for the examination and licensing
29 of electrical contractors, residential electricians, journeyman electri-
30 cians, master electricians, provisional journeyman electricians, limited
31 electrical installers, limited electrical contractors, limited electrical
32 installer trainees, apprentice electricians, and state-certified private
33 inspectors.

34 (2) Individuals, firms, cooperatives, corporations, or municipali-
35 ties selling electricity, hereinafter known as the power supplier, shall
36 not connect with or energize any electrical installation coming under the
37 provisions of this chapter unless an inspection has been conducted covering
38 the installation to be energized. Electrical installations approved by the
39 board and addressed through administrative rules may be connected and ener-
40 gized by the power supplier after the purchase of an electrical permit by a
41 licensed electrical contractor.

42 (3) It shall be unlawful for any person, partnership, company, firm,
43 association, or corporation other than a power supplier to energize any
44 electrical installation coming under the provisions of this chapter prior to
45 the purchase of an electrical permit covering such installation.

1 SECTION 12. That Section 54-1006, Idaho Code, be, and the same is hereby
2 amended to read as follows:

3 54-1006. IDAHO ELECTRICAL BOARD. (1) The Idaho electrical board,
4 hereinafter known as the board, is hereby created and made a part of the
5 division of occupational and professional licenses. It shall be the re-
6 sponsibility and duty of the administrator of the division of occupational
7 and professional licenses to administer and enforce the provisions of this
8 chapter, and to serve as secretary to the Idaho electrical board.

9 (2) The board shall consist of nine (9) members to be appointed by the
10 governor and who shall serve at the pleasure of the governor. Two (2) members
11 shall be licensed journeymen or master electricians; two (2) members shall
12 be employees or officers of licensed electrical contractors; one (1) mem-
13 ber shall be a licensed limited electrical installer or limited electrical
14 contractor; one (1) member shall be an employee or officer of an electrical
15 power provider; one (1) member shall be an employee or officer of a manufac-
16 turing plant or other large power user; one (1) member shall be an employee or
17 director of a manufacturer or distributor of electrical supplies or materi-
18 als; and one (1) member shall be from the public at large not directly asso-
19 ciated with the electrical industry. Board members shall be appointed for a
20 term of four (4) years. Members of the board shall hold office until expira-
21 tion of the term to which the member was appointed and until his successor has
22 been duly appointed and qualified. Whenever a vacancy occurs, the governor
23 shall appoint a qualified person to fill the vacancy for the unexpired por-
24 tion of the term.

25 (3) All members of the board shall be citizens of the United States,
26 residents of this state for not less than two (2) years and shall be quali-
27 fied by experience, knowledge and integrity in formulating rules for exami-
28 nations, in passing on the fitness and qualifications of applicants for li-
29 censure and in establishing standards for electrical products to be used in
30 electrical installations coming under the provisions of this chapter.

31 (4) The members of the board shall, every two (2) years, elect by major-
32 ity vote of the members of the board a chairman who shall preside at meetings
33 of the board and a vice chairman who shall preside at any board meeting in
34 the event the chairman is not present. A majority of the members of the board
35 shall constitute a quorum.

36 (5) The board is authorized and directed to prescribe and amend rules,
37 subject to legislative approval, consistent with this chapter for the ad-
38 ministration of this chapter, and to effectuate the purpose thereof, and
39 for the examination and licensing of electrical contractors, residential
40 electricians, journeyman electricians, master electricians, provisional
41 journeyman electricians, limited electrical installers, limited electri-
42 cal contractors, limited electrical installer trainees, ~~and~~ apprentice
43 electricians, and state-certified private inspectors. The board shall
44 also establish the categories for limited electrical installers and limited
45 electrical contractor licensing ~~and~~. Prior to June 30, 2030, the board is
46 authorized to establish the fees to be charged for permits and inspections
47 of electrical systems. The board shall establish by administrative rule the
48 fines to be paid for citations issued and shall hear appeals regarding the
49 imposition of civil penalties for violations of this chapter and the rules

1 of the Idaho electrical board. The board is authorized to affirm, reject,
2 decrease or increase the penalty imposed by the administrator. However,
3 in no case shall the penalty exceed one thousand dollars (\$1,000) for each
4 offense.

5 (6) Each member of the board not otherwise compensated by public moneys
6 shall be compensated as provided by section 59-509(n), Idaho Code.

7 SECTION 13. That Section 54-1007, Idaho Code, be, and the same is hereby
8 amended to read as follows:

9 54-1007. ISSUANCE OF LICENSES -- RECIPROCITY. (1) The administrator
10 shall issue licenses to such persons as have by examination shown themselves
11 to be fit, competent and qualified to engage in the trade of residential
12 electrician, journeyman electrician, limited electrical installer or mas-
13 ter electrician as defined in section 54-1003A, Idaho Code, and to such
14 persons, firms, partnerships, associations or corporations as have shown
15 themselves to be fit, competent and qualified to engage in the business of
16 electrical contracting or limited electrical contracting as defined in sec-
17 tion 54-1003A, Idaho Code.

18 (2) An apprentice electrician, as defined in section 54-1003A, Idaho
19 Code, may take the journeyman's examination if he has completed the required
20 related instruction for electrical apprentices as approved by the Idaho
21 state board for career technical education, completion of which shall be
22 evidenced by a certificate from an approved provider, and has worked the
23 number of hours as prescribed by the Idaho electrical board, provided that
24 for all the time he is claiming to have worked as an apprentice electrician,
25 the apprentice shall have been registered with the division of occupational
26 and professional licenses as an apprentice. The electrical board may by rule
27 fix the apprentice registration fee, in an amount not to exceed the costs of
28 issuing apprentice registration certificates and enforcing the apprentice
29 registration provisions of this chapter, and may also by rule establish re-
30 quirements relative to the manner of registration renewal, verification of
31 employment, the number of instructional hours completed, and the number of
32 hours worked.

33 (3) Any person who has worked as a licensed journeyman for a period of
34 not less than four (4) years and who has worked the number of hours as pre-
35 scribed by rule of the board as a licensed journeyman electrician shall be
36 considered as qualified to apply for a master electrician's license in this
37 state. The Idaho electrical board, in establishing by rule the requirements
38 for a master electrician's license, shall also take into account the appli-
39 cant's performance as a journeyman electrician. When issuing a master elec-
40 trician's license to a person, the administrator shall also issue a journey-
41 man electrician's license to such person at no additional cost and without
42 any additional requirements beyond those required to receive a master elec-
43 trician's license.

44 (4) Notwithstanding subsection (2) of this section, any person who can
45 demonstrate eight (8) years of work experience, defined as a minimum of six-
46 teen thousand (16,000) hours, making electrical installations on the job,
47 shall be considered as qualified to apply for a journeyman electrician's li-
48 cense in this state.

(5) A person qualifies for a residential electrician license if he passes the residential electrician examination approved by the board, has completed a two (2) year course of related instruction for residential electrical apprentices as approved by the Idaho electrical board and the Idaho state board for career technical education, and submits proof of four thousand (4,000) hours of electrical experience as an Idaho-registered apprentice or in accordance with the requirements of the jurisdiction where the applicant obtained such experience. Completion of an approved course as required pursuant to this subsection shall be evidenced by a certificate from an approved provider. An applicant for a journeyman electrician license may utilize the experience hours identified in this section toward the work experience requirement for a journeyman electrician license.

(6) To the extent that other states that provide for the licensing of electricians require qualifications at least equal to those contained in this chapter, the administrator may enter reciprocal agreements with such other states to grant licenses to electricians licensed by such other states. The administrator, on the recommendation of the Idaho electrical board, may grant licenses to electricians licensed by such other states upon payment by the applicant of the required fee and upon furnishing proof to the board that the applicant has qualifications at least equal to those provided herein for applicants for written examinations. Applicants who qualify for a license under this subsection are not required to take a written examination.

(7) A provisional journeyman electrician, as defined in section 54-1003A, Idaho Code, may take the residential electrician or journeyman electrician examination. Upon passing the examination, the administrator of the division of occupational and professional licenses shall issue the provisional journeyman electrician a residential or journeyman electrician's license.

(8) Private inspectors shall be qualified to become state-certified private inspectors pursuant to this chapter if they are qualified pursuant to section 54-1019, Idaho Code.

SECTION 14. That Section 54-1008, Idaho Code, be, and the same is hereby amended to read as follows:

54-1008. DURATION OF LICENSE. (1) All licenses, including license renewals, for master electricians, residential electricians, journeyman electricians, ~~and~~ limited electrical installers, and state-certified private inspectors shall be issued for a period of three (3) years and shall expire three (3) years from the birthday of the licensee unless renewed, revoked, or suspended.

(2) Electrical contractor and limited electrical contractor licenses shall be issued for a period of two (2) years and shall expire two (2) years from the birthday of the licensee unless renewed, revoked, or suspended.

(3) Electrical apprentice registrations issued or renewed shall be issued for a period of two (2) years. No person shall be issued an apprentice license for more than five (5) two (2) year periods.

(4) Limited electrical installer trainee registrations shall be issued for a period of three (3) years.

1 (5) Facility account licenses shall be issued and renewed for a period
2 of two (2) years.

3 (6) (a) Provisional journeyman electrician's licenses shall be issued
4 for a period of six (6) months and shall expire six (6) months from the
5 date issued, during which time a provisional journeyman electrician
6 shall apply for and take the journeyman electrician examination. A six
7 (6) month renewal shall be issued upon application if:

8 (i) The applicant has taken, but failed to pass, the journeyman
9 electrician examination within the six (6) month period; or

10 (ii) The applicant has failed to take the journeyman electrician
11 examination within the six (6) month period and has shown that ex-
12 ceptional circumstances prevented the applicant from taking the
13 journeyman electrician examination.

14 (b) A provisional journeyman electrician's license shall be issued and
15 renewed only once. If the applicant fails to pass the journeyman elec-
16 trician examination, or fails to take the journeyman electrician ex-
17 amination, within one (1) year from the date of issue of a provisional
18 journeyman electrician's license, the applicant is no longer eligible
19 to apply for a provisional journeyman electrician's license.

20 (7) Each licensing period and each registration period shall end at
21 midnight on the last day of the month of the licensing or registration
22 period. Licenses and registrations not renewed by this date shall have ex-
23 pired.

24 (8) The board shall promulgate rules to provide for a staggered system
25 of issuing and renewing licenses.

26 SECTION 15. That Section 54-1009, Idaho Code, be, and the same is hereby
27 amended to read as follows:

28 54-1009. REVOCATION OR SUSPENSION OF LICENSES OR CERTIFICATIONS --
29 HEARINGS -- TAKING TESTIMONY. (1) The administrator shall have power to re-
30 voke or suspend any license, ~~or~~ registration, or certification if the same
31 was obtained through error or fraud, or if the holder thereof is shown to be
32 grossly incompetent, or has willfully violated any of the rules prescribed
33 by the board, or as prescribed in this chapter; or has, after due notice,
34 failed or refused to correct, within the specified time, any electrical
35 installation not in compliance with the provisions of this chapter, or has
36 failed to pay within the time provided, civil penalties which have become
37 final by operation of law.

38 (2) The administrator shall have the power to suspend any electrical
39 contractor or limited electrical contractor license if, at any time during
40 the term of active contractor or limited contractor licensure, the licensee
41 failed to maintain required liability insurance or applicable worker's com-
42 pensation insurance.

43 (3) Before any license or certification shall be revoked or suspended,
44 the holder thereof shall have written notice enumerating the charges against
45 him and shall be given a hearing by said administrator, and have an oppor-
46 tunity to produce testimony in his behalf, at a time and place specified in
47 said notice, which time shall not be less than five (5) days after the service
48 thereof.

1 (a) The proceedings shall be governed by the provisions of chapter 52,
2 title 67, Idaho Code.

3 (b) Any party aggrieved by the action of the administrator shall be en-
4 titled to judicial review thereof in accordance with the provisions of
5 chapter 52, title 67, Idaho Code.

6 (4) The administrator shall have the power to appoint, by an order in
7 writing, a hearing officer to take testimony, who shall have power to admin-
8 ister oaths, issue subpoenas and compel the attendance of witnesses, and the
9 decision of the administrator shall be based on his examination of the testi-
10 mony taken and the records produced. Any person whose license or certifica-
11 tion has been revoked may, after the expiration of one (1) year from the date
12 of such revocation, but not before, apply for a new license or certification.

13 SECTION 16. That Section 54-1017, Idaho Code, be, and the same is hereby
14 amended to read as follows:

15 54-1017. VIOLATIONS OF ACT A MISDEMEANOR. Any person, partnership,
16 company, firm, association, or corporation who shall engage in the trade,
17 business or calling of an electrical contractor, residential electrician,
18 journeyman electrician, master electrician, limited electrical installer,
19 limited electrical contractor, limited electrical installer trainee, ~~or~~
20 apprentice electrician, or state-certified private inspector without a
21 license or required registration as provided for by this act, or who shall
22 violate any of the provisions of this act or the rules of the Idaho elec-
23 trical board or of the administrator of the division of occupational and
24 professional licenses provided for in this chapter, or who shall refuse to
25 perform any duty lawfully enjoined upon him by the administrator within the
26 prescribed time, or who shall fail, neglect, or refuse to obey any lawful
27 order given or made by the administrator shall be guilty of a misdemeanor.
28 In addition, any such person, partnership, company, firm, association,
29 or corporation shall be subject to the civil penalties established by ad-
30 ministrative rule, but not to exceed three thousand dollars (\$3,000) per
31 violation. Each day of such violation shall constitute a separate offense.
32 A violation will be considered a second or additional offense only if it oc-
33 curs within one (1) year from the first violation.

34 SECTION 17. That Section 54-1019, Idaho Code, be, and the same is hereby
35 repealed.

36 SECTION 18. That Chapter 10, Title 54, Idaho Code, be, and the same is
37 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
38 ignated as Section 54-1019, Idaho Code, and to read as follows:

39 54-1019. QUALIFICATIONS OF INSPECTORS. All inspectors shall be
40 skilled in electrical installations with not less than four (4) years of
41 actual experience as a journeyman or master electrician, shall possess
42 journeyman or master electrician licenses in the state of Idaho prior to
43 appointment, and shall be fully familiar with the provisions of this chapter
44 and rules made both by the administrator and the Idaho electrical board.

1 SECTION 19. That Section [54-2601](#), Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 20. That Chapter 26, Title 54, Idaho Code, be, and the same is
4 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
5 ignated as Section 54-2601, Idaho Code, and to read as follows:

6 54-2601. DECLARATION OF POLICY AND PURPOSE OF CHAPTER -- IDAHO STATE
7 PLUMBING CODE. (1) The purpose of this chapter is to provide certain
8 standards and requirements for the use of and the design, construction, in-
9 stallation, improvement, extension, and alteration of materials, piping,
10 venting, fixtures, appliances, and appurtenances in relation to plumbing
11 and plumbing systems and to provide that all plumbing and plumbing systems
12 in the state shall be designed, constructed, installed, improved, extended,
13 and altered in substantial accord with the uniform plumbing code published
14 by the international association of plumbing and mechanical officials and as
15 it shall be amended, revised, compiled, and published from time to time and
16 as subsequent editions, amendments, or revisions thereto shall be adopted
17 by the Idaho plumbing board through the negotiated rulemaking process. Any
18 amendments, revisions, or modifications made to the uniform plumbing code
19 by the board shall be made by administrative rules promulgated by the board,
20 subject to legislative approval. The uniform plumbing code together with
21 any amendments, revisions, or modifications made by the board shall col-
22 lectively constitute and be named the Idaho state plumbing code. The board
23 shall conduct a minimum of two (2) public hearings with notice of such public
24 hearings provided in accordance with the provisions of section 74-204, Idaho
25 Code.

26 (2) Cities or counties electing to implement a plumbing code enforce-
27 ment program shall do so only in compliance with the provisions of this
28 section. Cities or counties may elect to implement a plumbing enforcement
29 program by passing an ordinance evidencing the intent to do so. Cities or
30 counties that perform plumbing code enforcement activities shall, except as
31 provided in subsection (3) of this section, by ordinance adopt the uniform
32 plumbing code together with any amendments thereto made by the board, which
33 shall collectively constitute and be named the Idaho state plumbing code.
34 The effective date of any edition of the code adopted by the board shall be
35 January 1 of the year following its adoption.

36 (3) Cities or counties may further amend the Idaho state plumbing code
37 adopted by the board in conformance with this section to address local con-
38 cerns as long as such amendments prescribe at least an equivalent level of
39 protection to that contained in the uniform plumbing code. Provided how-
40 ever, that no code other than the uniform plumbing code together with any
41 amendments, revisions, or modifications made by the board that collectively
42 constitute the Idaho state plumbing code may serve as the standard for plumb-
43 ing installations in such city or county. A city or county electing to amend
44 the Idaho state plumbing code as adopted by the board may do so only after a
45 finding by the city or county that good cause exists for such an amendment
46 and that such amendment is reasonably necessary. Prior to making a finding
47 of good cause for such an amendment, the city or county shall conduct a pub-
48 lic hearing. Notice of the time and place of the public hearing shall be pub-
49 lished in the official newspaper or paper of general circulation within the

1 city or county. Written notice of such public hearing and the text of the
 2 proposed amendment shall be given by the city or county to the board not less
 3 than thirty (30) days prior to such hearing.

4 (4) The remaining provisions of this chapter shall not apply, except as
 5 hereinafter provided, to cities or counties if such cities or counties enact
 6 ordinances or codes prescribing the Idaho state plumbing code and amendments
 7 it may make thereto in accordance with this section for all plumbing instal-
 8 lations which shall be considered the equal standards and requirements in-
 9 cluding the enforcement thereof as provided by this chapter.

10 (5) A city or county that enforces plumbing codes shall do so only in
 11 compliance with the provisions of this section and the Idaho state plumbing
 12 code. A city or county that performs plumbing code enforcement activities
 13 pursuant to this section may perform plumbing code enforcement activities
 14 for other cities or counties. The provisions of the Idaho state plumbing
 15 code shall be used as the standard for plumbing code enforcement activities
 16 pursuant to this section.

17 (6) A city or county that has not previously instituted and implemented
 18 a plumbing code enforcement program prior to the effective date of this sec-
 19 tion may elect to implement such a program by passing an ordinance evidencing
 20 the intent to do so. A city or county may contract with a public or private
 21 entity to administer its plumbing code enforcement program pursuant to the
 22 provisions of this section.

23 SECTION 21. That Section 54-2606, Idaho Code, be, and the same is hereby
 24 amended to read as follows:

25 54-2606. POWERS AND DUTIES OF THE IDAHO PLUMBING BOARD. (1) The board
 26 shall have the general administration and supervision of the design, con-
 27 struction, installation, improvement, extension and alteration of plumbing
 28 and plumbing systems, except that which has been heretofore and here-
 29 inafter exempted from the jurisdiction of this board, in connection with
 30 all buildings, residences and structures in this state including buildings,
 31 residences and structures owned by the state or any political subdivision
 32 thereof.

33 (2) The division of occupational and professional licenses shall en-
 34 force the minimum standards and requirements therefor as provided by this
 35 chapter.

36 (3) The board may exercise such powers and duties as are reasonably nec-
 37 essary to carry out the provisions of this chapter, and it may among other
 38 things:

39 (a) ~~Establish~~ Prior to July 1, 2030, establish the fees to be charged
 40 for permits and inspections of plumbing systems.

41 (b) Hold public meetings and attend or be represented at such meetings,
 42 within or without the state, prepare and publish rules pertaining to
 43 this chapter, and such other information as may be necessary, and fur-
 44 nish copies thereof to those engaged in the business, trade, practice or
 45 work of plumbing and pipefitting and to the public upon request.

46 (c) Furnish standards and procedures and prescribe reasonable rules
 47 for examinations, qualification and certification of plumbing con-
 48 tractors and journeymen and apprentice plumbers not herein prescribed,

1 including the establishment of continuing education requirements for
2 journeymen and plumbing contractors.

3 (d) Require the furnishing of a compliance bond by plumbing contractors
4 in an amount not to exceed two thousand dollars (\$2,000) for the con-
5 tractor classification or evidence of such coverage by a corporate in-
6 dustry group bond acceptable to the board.

7 (e) Furnish standards and procedures and prescribe reasonable rules
8 to provide for the certification of specialty contractors, specialty
9 journeymen, and specialty apprentices, including the furnishing of a
10 compliance bond in an amount not to exceed two thousand dollars (\$2,000)
11 for the specialty contractor classification or evidence of coverage by
12 a corporate industry group bond acceptable to the board.

13 (f) Establish by administrative rule civil penalties not to exceed one
14 thousand dollars (\$1,000) for each count or separate offense, to be paid
15 for violations of this chapter and rules of the Idaho plumbing board;
16 and to establish by administrative rule the process by which appeals
17 from the imposition of civil penalties may be heard. The board is au-
18 thorized to affirm, reject, decrease or increase the penalty imposed;
19 however, the board shall not increase any penalty imposed to an amount
20 exceeding one thousand dollars (\$1,000) for each individual count or
21 separate offense.

22 (g) Provide for the certification of private inspectors who are quali-
23 fied pursuant to section 54-2627, Idaho Code.

24 SECTION 22. That Section 54-2607, Idaho Code, be, and the same is hereby
25 amended to read as follows:

26 54-2607. ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFES-
27 SIONAL LICENSES -- POWERS AND DUTIES. (1) The administrator shall exercise
28 such powers and duties as are reasonably necessary to enforce the minimum
29 standards provided in this chapter, and he may among other things:

30 (a) Prescribe and establish procedures to effectuate the efficient en-
31 forcement of this chapter not herein prescribed.

32 (b) Serve as secretary to the Idaho plumbing board.

33 (c) ~~Appoint~~ Prior to July 1, 2030, ~~appoint~~ licensed staff inspectors
34 who shall be authorized to enter and inspect by and through a properly
35 identified person, at reasonable hours, plumbing and plumbing systems.

36 (d) ~~Make~~ Prior to July 1, 2030, ~~make~~ plumbing inspections for another
37 state or local jurisdiction upon request by an appropriate building of-
38 ficial. Such inspections shall be made in accordance with the appli-
39 cable plumbing codes of the requesting jurisdiction. Fees charged for
40 such inspection services shall be as provided in the rules promulgated
41 by the board.

42 (e) Summon witnesses to appear and testify before him on any matter
43 within the provisions of this chapter. No person shall be required to
44 testify outside the county wherein he resides or where his principal
45 place of business is located. Such summons to testify shall be issued
46 and served in like manner as a subpoena to witness issued from the dis-
47 trict court or in other manner consistent with the procedure of the
48 division of occupational and professional licenses. In case any wit-
49 ness shall fail or refuse to appear and testify upon being summoned as

herein provided, the clerk of the district court of the county shall, upon demand by the administrator or his designated agent, issue a subpoena reciting the demand therefor and summoning the witness to appear and testify at a time and place fixed. Violation of such subpoena or disobedience thereto shall be deemed and punished as a violation of any other subpoena issued from the district court.

(f) Administer oaths and take affirmations of witnesses appearing before him and have the power to appoint competent persons to issue subpoenas, administer oaths and take testimony.

(g) Impose civil penalties as provided in this chapter and the rules of the Idaho plumbing board.

(h) In addition to any other penalties specified in this chapter, whenever any person violates the provisions of this chapter and the rules of the Idaho plumbing board, the administrator may maintain an action in the name of the state of Idaho to enjoin that person from any further violations. Such action may be brought either in the county in which the acts are claimed to have been or are being committed, or in the county where the defendant resides, or in Ada county.

(i) Upon the filing of a certified complaint in the district court, the court, if satisfied that the acts complained of have been, probably are being, or may be committed, may issue a temporary restraining order, or a preliminary injunction, or both, without bond, enjoining the defendant from the commission of any such act or acts constituting the violation.

(ii) A copy of the complaint shall be served upon the defendant and the proceedings shall thereafter be conducted as in other similar civil actions.

(iii) If the commission of the act or acts is established, the court shall enter a decree permanently enjoining the defendant from committing such act or acts. If an injunction issued under the provisions of this section is violated, the court, or the judge thereof at chambers, may summarily try and punish the offender for contempt of court.

(2) It shall be the duty of the administrator to give notice to cities that supply sewer service to areas outside their city limits and who have requested in writing such notice from the administrator of all permits issued relative to sewer installations. The notice shall be given within ten (10) days from the date the permit was requested for such installation. The notice shall contain a map of the physical location of the installation and reference to the date of inspection if the city so requests.

SECTION 23. That Section 54-2608, Idaho Code, be, and the same is hereby amended to read as follows:

54-2608. REVOCATION OF CERTIFICATES OF COMPETENCY -- SUSPENSION -- REFUSAL TO RENEW. The administrator of the division of occupational and professional licenses shall have on the recommendation of the board the power to revoke, suspend or refuse to issue a renewal of any certificate of competency if the same was obtained through error or fraud, or if the holder thereof is shown to be grossly incompetent or has a second time violated any of the rules prescribed by the board, or as prescribed by this act. Before the adminis-

trator shall refuse to grant a renewal of said certificate to any applicant or shall revoke or suspend any certificate previously granted, he shall hold a hearing giving such applicant or holder of said certificate fifteen (15) days written notice of his intended action by registered mail directed to the applicant or holder at the address given on said certificate or in the application for said certificate, stating generally the basis for his intended action; and the applicant or holder of said certificate shall have the opportunity to produce testimony in his own behalf at a time and place specified in said notice. The proceedings shall be governed by the provisions of chapter 52, title 67, Idaho Code. If the administrator, after the hearing, shall refuse to grant a renewal of said certificate or shall suspend or revoke any certificate previously granted, said applicant or holder of a certificate may seek judicial review of the administrator's final order in accordance with the provisions of chapter 52, title 67, Idaho Code. Any person whose certificate has been revoked may, after the expiration of one (1) year from the date of revocation, but not before, apply for a new certificate of competency. The provisions of this section shall apply to a state-certified private inspector in addition to any other person provided by law.

SECTION 24. That Section [54-2620](#), Idaho Code, be, and the same is hereby repealed.

SECTION 25. That Section [54-2622](#), Idaho Code, be, and the same is hereby repealed.

SECTION 26. That Section [54-2623](#), Idaho Code, be, and the same is hereby repealed.

SECTION 27. That Section 54-2624, Idaho Code, be, and the same is hereby amended to read as follows:

54-2624. ~~INSPECTIONS BY AGENT~~ -- TESTS. All pipes, fittings, valves, vents, fixtures, appliances and appurtenances shall be inspected by a designated, qualified and properly identified ~~agent of the division of occupational and professional licenses~~ inspector to ensure compliance with provisions of this act. In order to make inspections uniform and complete, the board shall make, promulgate and publish such rules as are necessary to ensure that any plumbing system has been designed, constructed, installed, improved, extended or altered in accordance with the provisions of this act and in accordance with the rules made, promulgated and published by the Idaho plumbing board.

SECTION 28. That Section [54-2626](#), Idaho Code, be, and the same is hereby repealed.

SECTION 29. That Section 54-2627, Idaho Code, be, and the same is hereby amended to read as follows:

54-2627. APPOINTMENT OF INSPECTORS -- QUALIFICATIONS -- UNLAWFUL PRACTICES. (1) The administrator of the division of occupational and profes-

1 sional licenses shall appoint such number of inspectors as may be required
2 for the effective enforcement of this act.

3 (2) All inspectors shall be skilled in plumbing installations with not
4 less than five (5) years actual experience, shall possess certificates of
5 competency prior to appointment, and shall be fully familiar with the pro-
6 visions of this act and rules made by both the administrator and the Idaho
7 plumbing board.

8 (3) ~~No inspector employed by the division of occupational and profes-~~
9 ~~sional licenses and assigned to the enforcement of this act shall be engaged~~
10 or financially interested in a plumbing business, trade, practice or work,
11 or the sale of any supplies connected therewith, nor shall he act as an agent,
12 directly or indirectly, for any person, firm, copartnership, association or
13 corporation so engaged.

14 (4) Inspectors employed by municipalities electing to claim exemption
15 under this act must possess the qualifications set forth in this section.

16 (5) State-certified private inspectors shall be qualified pursuant to
17 subsections (2) and (3) of this section.

18 SECTION 30. That Section [54-5005](#), Idaho Code, be, and the same is hereby
19 repealed.

20 SECTION 31. That Chapter 50, Title 54, Idaho Code, be, and the same is
21 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
22 ignated as Section 54-5005, Idaho Code, and to read as follows:

23 54-5005. POWERS AND DUTIES OF THE BOARD -- LIMITATION. (1) The board
24 shall have the general administration and supervision of the design, con-
25 struction, installation, improvement, extension, and alteration of heat-
26 ing, ventilation, and air conditioning systems, except that which has been
27 heretofore and hereinafter exempted from the jurisdiction of this board, in
28 connection with all buildings, residences, and structures in this state, in-
29 cluding buildings, residences, and structures owned by the state or any po-
30 litical subdivision thereof. The division of occupational and professional
31 licenses shall enforce the minimum standards and requirements therefor as
32 provided by this chapter. The board may exercise such powers and duties as
33 are reasonably necessary to carry out the provisions of this chapter, and it
34 may, among other things:

35 (a) Hold public meetings and attend or be represented at such meetings,
36 within or without the state, promulgate rules, subject to legislative
37 approval, pertaining to this chapter and such other information as may
38 be necessary, and furnish copies thereof to those engaged in the busi-
39 ness, trade, practice, or work of heating, ventilation, and air condi-
40 tioning and to the public upon request; and

41 (b) Establish by administrative rule, subject to legislative approval,
42 the fines to be paid for citations issued and hear appeals regarding the
43 imposition of civil penalties for violations of this chapter and rules
44 of the board. The board is authorized to affirm, reject, decrease,
45 or increase the penalty imposed by the administrator. However, in no
46 case shall the penalty exceed one thousand dollars (\$1,000) for each
47 offense.

1 (2) The powers and duties of the board within the jurisdictional bound-
2 aries of local governments that have chosen to adopt and enforce mechan-
3 ical codes shall be limited to those powers and duties needed to enforce the
4 requirements governing a certificate of competency. Each local government
5 that has chosen to adopt and enforce mechanical codes shall establish fees to
6 be charged for permits and inspections within its jurisdiction.

7 SECTION 32. That Section [54-5006](#), Idaho Code, be, and the same is hereby
8 repealed.

9 SECTION 33. That Chapter 50, Title 54, Idaho Code, be, and the same is
10 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
11 ignated as Section 54-5006, Idaho Code, and to read as follows:

12 54-5006. ADMINISTRATOR OF THE DIVISION OF OCCUPATIONAL AND PROFES-
13 SIONAL LICENSES. The administrator shall exercise such powers and duties as
14 are reasonably necessary to enforce standards provided in this chapter, and
15 he may, among other things:

16 (1) Serve as secretary to the Idaho heating, ventilation and air condi-
17 tioning board;

18 (2) Provide for HVAC inspections for another state or local jurisdic-
19 tion upon request by an appropriate building official. Such inspections
20 shall be made in accordance with the applicable HVAC codes of the requesting
21 jurisdiction. Fees charged for such inspection services shall be as pro-
22 vided in the rules promulgated by the board;

23 (3) Summon witnesses to appear and testify before him on any matter
24 within the provisions of this chapter. No person shall be required to tes-
25 tify outside the county wherein he resides or where his principal place of
26 business is located. Such summons to testify shall be issued and served in
27 like manner as a subpoena to witness issued from the district court, or in
28 other manner consistent with procedure of the division of occupational and
29 professional licenses. In case any witness shall fail or refuse to appear
30 and testify upon being summoned as herein provided, the clerk of the district
31 court of the county shall, upon demand by said administrator or his desig-
32 nated agent, issue a subpoena reciting the demand therefor and summoning the
33 witness to appear and testify at a time and place fixed. Violation of such
34 subpoena or disobedience thereto shall be deemed and punished as a violation
35 of any other subpoena issued from the district court;

36 (4) Administer oaths and take affirmations of witnesses appearing be-
37 fore him or a duly appointed hearing officer and appoint competent persons to
38 issue subpoenas, administer oaths, and take testimony; and

39 (5) Impose civil penalties as provided in this chapter and rules of the
40 board.

41 SECTION 34. That Section [54-5016](#), Idaho Code, be, and the same is hereby
42 repealed.

43 SECTION 35. That Chapter 50, Title 54, Idaho Code, be, and the same is
44 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
45 ignated as Section 54-5016, Idaho Code, and to read as follows:

1 54-5016. PERMITS REQUIRED -- EXCEPTION -- LOCAL GOVERNMENT FEES AL-
 2 LOWED. (1) It shall be unlawful for any person, firm, partnership, company,
 3 association, or corporation to do or cause to be done, whether acting as
 4 principal, agent, or employee, any construction, installation, improve-
 5 ment, extension, or alteration of any heating, ventilation, or air condi-
 6 tioning system in any building, residence, or structure in the state of Idaho
 7 without first obtaining a permit from the authority having jurisdiction
 8 authorizing such work to be done, except that no permit shall be required to
 9 perform work related to repair or maintenance of an existing HVAC system.

10 (2) No provision of this chapter shall preclude local governments from
 11 collecting fees for permits and inspections where such work is regulated and
 12 enforced by city or county code or ordinance. Municipalities may also re-
 13 quire fees for permits and inspections in areas designated by local code or
 14 ordinance as areas of city impact.

15 SECTION 36. That Section [54-5017](#), Idaho Code, be, and the same is hereby
 16 repealed.

17 SECTION 37. That Section 54-5018, Idaho Code, be, and the same is hereby
 18 amended to read as follows:

19 54-5018. INSPECTION BY AGENT. A designated, qualified, properly iden-
 20 tified agent of the authority having jurisdiction or a state-certified pri-
 21 rate inspector shall inspect work performed under each permit to ensure com-
 22 pliance with the provisions of this chapter and rules as promulgated by the
 23 board, and applicable codes and ordinances as adopted.

24 SECTION 38. That Section [54-5020](#), Idaho Code, be, and the same is hereby
 25 repealed.

26 SECTION 39. That Chapter 50, Title 54, Idaho Code, be, and the same is
 27 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 28 ignated as Section 54-5020, Idaho Code, and to read as follows:

29 54-5020. REQUESTS FOR INSPECTION -- LOCAL GOVERNMENTS. Local govern-
 30 ments that have adopted mechanical codes shall by ordinance establish times
 31 within which permit holders shall notify the authority of the desire for an
 32 inspection.

33 SECTION 40. That Section [54-5021](#), Idaho Code, be, and the same is hereby
 34 repealed.

35 SECTION 41. SEVERABILITY. The provisions of this act are hereby de-
 36 clared to be severable and if any provision of this act or the application
 37 of such provision to any person or circumstance is declared invalid for any
 38 reason, such declaration shall not affect the validity of the remaining por-
 39 tions of this act.

40 SECTION 42. An emergency existing therefor, which emergency is hereby
 41 declared to exist, sections 1, 2, 6, 7, 8, 12, 13, 14, 15, 16, 21, 22, 23, 27,
 42 29, and 37 of this act shall be in full force and effect on and after July 1,
 43 2026. Sections 3, 4, 5, 9, 10, 11, 17, 18, 19, 20, 24, 25, 26, 28, 30, 31,

1 32, 33, 34, 35, 36, 38, 39, 40, and 41 shall be in full force and effect on and
2 after July 1, 2030.